

MASTER SOFTWARE SERVICES & CONSULTING AGREEMENT

Commercial Professional Services Agreement · MSA-2026-ENG

Effective Date: September 15, 2026	Contract Type: Master Services Agreement
Service Provider: Nexus Cloud Solutions Ltd.	Client: Horizon Financial Group Inc.

This Master Services Agreement ("Agreement") is entered into as of September 15, 2026, by and between **Nexus Cloud Solutions Ltd.**, a Delaware corporation ("Provider"), and **Horizon Financial Group Inc.**, a New York corporation ("Client").

Section 1: Scope of Services & Deliverables

Provider agrees to perform professional cloud migration, software engineering, and security review services as detailed in Statements of Work ("SOW") executed hereunder. All work shall be performed in a professional, workmanlike manner adhering to industry quality standards.

Section 2: Payment Terms & Invoicing

Client shall remit payment for undisputed invoices within thirty (30) days of receipt (Net 30). Late payments shall accrue interest at the rate of one and a half percent (1.5%) per month or the maximum statutory rate permitted by law, whichever is lower. Client shall notify Provider in writing of any disputed amounts within fifteen (15) days of invoice date.

Section 3: Term & Early Termination

The initial term of this Agreement shall be twelve (12) months. Either party may terminate this Agreement without cause upon sixty (60) days prior written notice. Either party may terminate immediately for material breach if such breach remains uncured for thirty (30) days following written notice.

Section 4: Limitation of Liability & Indemnification

Except for gross negligence, willful misconduct, or breach of confidentiality obligations, each party's aggregate cumulative liability arising out of or related to this Agreement shall be capped at the total fees paid or payable by Client to Provider under the applicable SOW in the preceding twelve (12) months.

Section 5: Governing Law & Jurisdiction

This Agreement shall be construed and enforced under the laws of the State of New York. The parties agree to the exclusive jurisdiction of the state and federal courts located in New York County, New York.

Authorized Signature: _____
Title: VP of Engineering
Date: September 15, 2026

Authorized Signature: _____
Title: Chief Operations Officer
Date: September 15, 2026